ARB/031/2025 Olen v Oreta

OCTOBER 02, 2025 ARBITRATION - ORDERS

Claim No: ARB/031/2025

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

OLEN

Claimant

and

ORETA

Defendant

ORDER WITH REASONS OF H.E. JUSTICE SHAMLAN AL SAWALEHI

UPON the Order of H.E. Justice Shamlan Al Sawaleh dated 2 September 2025 (the "Order") granting the Claimant's Arbitration Claim dated 26 August 2025 (the "Arbitration Claim") seeking recognition and enforcement of the Award dated 13 June 2025 (the "Award")

AND UPON paragraph 6 of the Order directing the Defendant to pay the Claimant's costs of the Arbitration Claim

AND UPON the Claimant filing its Statement of Costs on 4 September 2025

AND UPON reviewing the Statement of Costs

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 (Interest on Judgments)

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the Claimant the amount of USD 6,000 (the "Costs Award"), representing 80% of the total amount claimed in the Statement of Costs.

2. The Costs Award shall be paid within 14 days from the date of this Order, pursuant to RDC 38.40.

3. In the event the Defendant fails to pay the Costs Award within 14 days of this Order, interest shall accrue at the rate of 9% per annum from the date of this Order until full payment is made, in accordance with Practice Direction No. 4 of 2017

Issued By:

Delvin Sumo

Assistant Registrar

Date of issue: 2 October 2025

At: 10 am

SCHEDULE OF REASONS

1. This is an application made by the Claimant seeking costs pursuant to paragraph 6 of the Order dated 2 September 2025, by which I granted the Claimant's Arbitration Claim seeking recognition and enforcement of the Award.

2. For the reasons set out in that Order, I recognised the Award as binding within the DIFC under Article 43 of DIFC Law No. 1 of 2008 (the "Arbitration Law"), and enforceable as a judgment of the DIFC Courts under Article 42(1) of the same Law.

3. In its Statement of Costs dated 4 September 2025, the Claimant claimed a total of USD 7,500, comprising the time of one partner, charged at USD 750 per hour for ten hours of work.

4. I am satisfied that the hourly rate falls within the market range permitted by Registrar's Direction No. 1 of 2023, and that the steps taken were proportionate to the requirements of these proceedings.

5. However, in the exercise of my discretion under RDC 38.8 and RDC 38.23, and applying the standard basis of assessment, I consider that a reduction is warranted. I therefore allow 80% of the claimed costs.

6. In the circumstances, I consider that an award of USD 6,000 represents a fair, proportionate, and reasonable quantification of the Claimant's recoverable costs, in accordance with the overriding objective.

7. Accordingly, I award the Claimant costs in that amount, payable within 14 days, with interest accruing thereafter in accordance with the DIFC Courts' standard practice.